Under the Constitution, the civil servants are conferred personal immunity from legal liability for official contracts. This means that the civil servant who made a contract in his official capacity is not personally liable in respect of that contract but it is the government (Central or state) that is liable for the contract. But, if the contract is made without complying the conditions specified in the Constitution, then the civil servant who made the contract is personally liable. Further, the civil servants also enjoy immunity from legal liability for their tortious acts in respect of the sovereign functions of the government. In other cases, the liability of the civil servants for torts or illegal acts is the same as of any ordinary citizen. Civil proceedings can be instituted against them for anything done in their official capacity after giving a two months' advance notice. But, no such notice is required when the action is to be brought against them for the acts done outside the scope of their official duties. Criminal proceedings can be instituted against them for acts done in their official capacity, with the prior permission of the president or the governor, where necessary[6].

Table 76.1 Articles Related to Rights and Liabilities of the Government at a Glance

Article No.	Subject-matter
294.	Succession to property, assets, rights, liabilities and obligations in certain cases
295.	Succession to property, assets, rights, liabilities and obligations in other cases
296.	Property accruing by escheat or lapse or as *bona vacantia*
297.	Things of value within territorial waters or continental shelf and resources of the exclusive economic zone to vest in the Union
298.	Power to carry on trade, etc.
299.	Contracts
300.	Suits and proceedings
361.	Protection (immunities) of President and Governors

[1]Under the Territorial Waters, Continental Shelf, Exclusive Economic Zone and other Maritime Zones Act, 1976, passed by the Parliament after the 40th Constitutional Amendment Act, 1976.

[2]The first provision was added by the 44th Amendment Act (1978). This amendment abolished the Fundamental Right to property and made it a legal right. The second provision was added by the 17th Amendment Act (1964).